



CHAPTER ccviii.

An Act to empower the Corporation of Great Yarmouth, A.D. 1904
to construct tramways street improvements and other
works and to acquire the ferries across the Haven to
make further provision in regard to the health local
government and improvement of their borough and for
other purposes. [15th August 1904.]

WHEREAS the borough of Great Yarmouth in the county of
Norfolk is a county borough under the government of the
mayor aldermen and burgesses of the borough (herein-after called
“the Corporation”) :

And whereas by the Yarmouth and Gorleston Tramways
Extension Order 1897 and by section 43 of the Tramways Act
1870 the Corporation are empowered with the approval of the
Board of Trade to purchase the undertaking authorised by the
Gorleston Tramway Orders within six months after the twenty-
third day of August one thousand nine hundred and four :

And whereas in pursuance of the Great Yarmouth Corporation
Act 1899 the Corporation have constructed tramways in their
borough and it is expedient to empower them to construct the
additional tramways described in this Act and to widen certain
of the roads in which such tramways are proposed to be con-
structed and to confer further powers upon them in regard to
their tramway undertaking :

And whereas the parishes of Great Yarmouth and Gorleston
(both situate in the borough) are separated from one another by
the haven of Great Yarmouth and in order that further provision
may be made for communication between the said parishes it is
expedient to empower the Corporation to widen the existing bridge
called the Haven Bridge and to acquire and establish ferries :

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And whereas it is expedient to make further provision in regard to the streets and buildings in the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough be enlarged as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and such estimates are as follows :—

	£
For the construction of the tramways authorised by this Act and for the provision and erection of posts standards brackets conductors and other apparatus works and conveniences for the purposes of the said tramways - - -	65,000
For the provision of rolling stock - - -	12,000
For the reconstruction of the tramways authorised by the Gorleston Tramway Orders when acquired by the Corporation (other than the tramways which will be superseded by the tramways authorised by this Act) and for the provision and erection of posts standards brackets conductors and other apparatus for the purposes of those tramways - - -	8,000
For the purchase of lands for the street improvements authorised by this Act and for the execution of such street improvements - -	12,000
For the widening and improvement of the Haven Bridge and of the approach thereto authorised by this Act - - -	10,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the seventeenth day of November one thousand nine hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Yarmouth Independent a local newspaper circulating in the

[4 EDW. 7.] *Great Yarmouth Corporation Act, 1904.* [Ch. ccviii.]

borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expenses in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate : A.D. 1904.

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twelfth day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works by this Act authorised and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Norfolk and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Great Yarmouth Corporation Act 1904. Short title.

2. This Act is divided into parts as follows :—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Street Improvements.

Part IV.—The Haven.

Part V.—Lands and further Provisions as to Works.

Division of
Act into
parts.

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Part VI.—Streets and Buildings.

Part VII.—Sky Signs.

Part VIII.—Police.

Part IX.—Finance.

Part X.—Miscellaneous.

Incorporation of Acts.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act namely :—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) ;

Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that the words in section 19 of that Act “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages” shall not apply to the Corporation :

Provided also that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General The expression “telegraphic line” in this Act has the same meaning as in the Telegraph Act 1878.

Interpretation.

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act or by the Public Health Acts meanings are assigned shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to or inconsistent with such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Great Yarmouth ;

“The borough” means the borough of Great Yarmouth ;

“The council” means the council of the borough ;

“The town clerk” “the medical officer” and “the surveyor” mean respectively the town clerk the medical officer of health and the surveyor of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the

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borough fund the borough rate the district fund and the general district rate of the borough ;

A.D. 1904.

“ The Gorleston Tramway Orders ” means the East Anglian Tramway Order 1871 (confirmed by the Tramways Orders Confirmation Act 1871) the Yarmouth and Gorleston Tramways Extension Order 1883 (confirmed by the Tramways Orders Confirmation (No. 3) Act 1883) and the Yarmouth and Gorleston Tramways Extension Order 1897 (confirmed by the Tramways Orders Confirmation (No. 3) Act 1897) ;

“ The tramway company ” means the Yarmouth and Gorleston Tramways Company Limited ;

“ The Haven ” means the Haven of Great Yarmouth as defined in the Great Yarmouth Port and Haven Act 1866 and “ the Haven Bridge ” means the bridge referred to in that Act as the Haven Bridge ;

“ The commissioners ” means the Great Yarmouth Port and Haven Commissioners ;

“ The tribunal ” means the jury arbitrators umpire or other authority to whom any question of disputed compensation under this Act is referred ;

“ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction ;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond stock debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include securities of the Corporation or annuity certificates rentcharges or securities payable to bearer ;

“ The Act of 1897 ” and “ the Act of 1899 ” mean respectively the Great Yarmouth Corporation Act 1897 and the Great Yarmouth Corporation Act 1899.

PART II.

TRAMWAYS.

5. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways herein-after described in the lines and according to the levels

Power to
make tram-
ways.

A.D. 1904. shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates junctions turntables turn-outs crossings passing places posts poles brackets wires waiting-rooms carriage-houses sheds buildings engines works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways herein-before referred to and authorised by this Act are—

Tramway No. 1 (1 mile and 4·20 chains or thereabouts in length whereof 1 furlong 5 chains will be double line and 6 furlongs 9·20 chains will be single line) to be situate in the borough commencing by a junction with the existing tramway in St. Peter's Road at a point 0·45 chain west of Blackfriars' Road passing along Blackfriars Road Camden Road across Queen's Road along Admiralty Road Barrack Road and South Denes Road and terminating in the last-named road at a point opposite to the South Ferry over the River Yare :

Tramway No. 2 (7 furlongs and 1·40 chains or thereabouts in length whereof 1 furlong 2 chains will be double line and 5 furlongs 9·40 chains will be single line) to be situate in the borough commencing by a junction with the existing tramway at a point on Caister Road 1 chain north of the road on the south of the destructor leading to the bank of the River Bure passing along Caister Road and terminating in the last-named road at the borough boundary :

Tramway No. 3 (6 furlongs and 8·30 chains or thereabouts in length whereof 1 furlong 2 chains will be double line and 5 furlongs 6·30 chains will be single line) to be situate in the parish of Caister-next-Yarmouth in the rural district of East and West Flegg commencing by a junction with Tramway No. 2 at the termination thereof passing along Caister Road and terminating therein at a point 0·40 chain north of Tan Lane :

Tramway No. 4 (double line 1 furlong and 3·73 chains or thereabouts in length) to be situate in the borough commencing by a junction with the existing tramway on Hall Quay at a point opposite to the south side of the Capital

and Counties Bank crossing the Haven Bridge passing along Bridge Road and terminating in the yard of the Southtown Passenger Station of the Great Eastern Railway Company at a point opposite to the west side of the Two Bears Hotel :

Tramway No. 4A (double line 1·80 chains or thereabouts in length) to be situate in the borough commencing by a junction with the existing tramway on Hall Quay at a point opposite to the north side of Barclay's Bank crossing Hall Quay and terminating by a junction with Tramway No. 4 at a point 0·50 chain east of the east abutment of the Haven Bridge :

Tramway No. 5 (double line 1 mile 1 furlong and 6 chains or thereabouts in length) to be situate in the borough commencing in Bridge Road by a junction with Tramway No. 4 at a point 0·70 chain east of Mill Road passing along Bridge Road and Southtown Road and terminating in the last-named road by a junction with the existing tramway at a point 0·90 chain east of the entrance to Fenn Street :

Tramway No. 6 (5 furlongs and 3·25 chains or thereabouts in length whereof 1 furlong 9·50 chains will be double line and 3 furlongs 3·75 chains will be single line) to be situate in the borough commencing on Feathers Plain by a junction with the existing tramway at a point 3·55 chains north of the tramway station belonging to the tramway company passing along Feathers Plain Baker Street Pier Plain Pier Walk Pier Road and the road on the north side of the Gorleston Beach Gardens and terminating at a point in the last-mentioned road opposite to the west side of the Gorleston Shelter Hall :

Tramway No. 7 (2 furlongs and 1 chain or thereabouts in length whereof 6 chains will be double line and 1 furlong 5 chains will be single line) to be situate in the borough commencing in Lowestoft Road by a junction with the existing tramway at a point 1·70 chains north of England's Lane passing along Lowestoft Road and terminating in that road at a point opposite to the centre of Springfield Road :

Tramway No. 8 (single line 3 chains or thereabouts in length) to be situate in the borough commencing in Regent Road by a junction with the existing tramway 0·60 chain east of the west side of Nelson Road passing along Regent Road and terminating in that road by a junction with the existing tramway at a point 1·90 chains west of Nelson Road :

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Provided that no part of Tramway No. 1 shall be laid within a distance of eleven feet six inches from the existing tramway of the Great Eastern Railway Company except with the consent of that company :

Provided also that no part of Tramway No. 4 shall be so constructed that a less space than nine feet six inches would for a distance of thirty feet or upwards intervene between the outside of the footpath and the nearest rail of the tramway.

Construction
and renewal
of crossings
&c. opposite
to Admiralty
buildings.

6.—(1) Where any tramway constructed under this Act shall pass any land or building vested in or under the control of the Admiralty no crossing passing place siding junction or other work opposite to such land or building shall be constructed until it shall have been approved by the Admiralty or by an officer acting on their behalf in writing and if at any time it shall in the opinion of the Admiralty be desirable that such crossing passing place siding junction or other work shall be altered or removed the Corporation or their lessees shall alter or remove it to the satisfaction of the Admiralty within twenty-eight days from the time at which they are called upon so to do.

(2) The Corporation or their lessees shall not permit any of their engines cars or carriages to stop or stand upon the tramway opposite or near to the entrance to any lands or buildings vested in or under the control of the Admiralty in such manner as to interfere with access to or from such lands or buildings.

For protec-
tion of Great
Eastern Rail-
way Com-
pany.

7. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection of the Great Eastern Railway Company (herein-after referred to as "the company") shall apply and have effect :—

(1) The Corporation shall subject as herein-after mentioned construct Tramways Nos. 4 and 4a and so much of Tramway No. 5 as lies within fifty yards of any tramway or any lands or premises of the company (herein-after in this section referred to as "the said tramways") in the respective positions and in the manner shown on the deposited plans and no deviation of the said tramways shall be made from the centre lines shown on the deposited plans and the said tramways and any other works by this Act authorised shall be constructed by the Corporation where the same will be carried over upon across alongside or near any railways or tramways or premises of the company so as in no way to obstruct impede or interfere with the free

and uninterrupted and safe use of the said railways or tramways and premises of the company or with the traffic on such railways or tramways or premises or coming to or going from any such premises either during the construction of the said tramways and any other works as aforesaid or thereafter : A.D. 1904.

- (2) The Corporation shall construct the said tramways and all the works both temporary and permanent necessary and incident to the construction thereof according to plans sections and specifications and of such quality and strength of materials and in every other respect as shall be previously submitted to and reasonably approved by the principal engineer for the time being of the company (herein-after called "the principal engineer") and the Corporation shall not commence the construction of the said tramways or any of them or for the purposes thereof enter upon or interfere with any land works or property belonging to or used by the company until such plans sections and specifications have been so submitted and approved :

Provided always that if the principal engineer shall disapprove such plans sections or specifications and in case of the principal engineer and the engineer of the Corporation failing to agree or of any difference arising between them then the said tramways and the said works shall be constructed according to plans sections and specifications to be submitted to and approved by an engineer to be agreed upon or in default of agreement to be appointed at the request of either the Corporation or the company by the President of the Institution of Civil Engineers Provided also that if the principal engineer shall fail to signify his approval or disapproval within one month after the plans sections and specifications shall have been submitted to him he shall be deemed to have approved the same :

- (3) The said tramways and all works necessary or incident to the construction thereof or affecting the property or works of the company shall be executed by and in all things at the expense of the Corporation and under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer :

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(4) Within a reasonable time after the passing of this Act the company shall hand over to the Corporation without payment so much of the land numbered 1 in the parish of Gorleston as is shown by the colour yellow on a plan signed by John William Cockrill on behalf of the Corporation and by John Wilson on behalf of the company but no title to such land shall be called for nor shall any conveyance thereof be made to the Corporation. The Corporation shall forthwith upon possession being given to them as aforesaid of the land shown by the colour yellow on the said signed plan at their own expense remove the fence and gate of the company between the points indicated by the letters A B C on that plan and erect in lieu thereof in the course indicated by dotted red lines between the points E C on the said signed plan a good and sufficient fence of similar description with all necessary posts and other works as may be required by the principal engineer and the Corporation shall also at their own expense and to the satisfaction of the principal engineer erect a new gate in the position shown on the said signed plan by the letter D and shall not at any time or times thereafter prevent or hinder the company and others authorised by them passing and repassing with horses waggons and other vehicles over the footpath (if any) lying between the roadway and the premises of the company :

(5) Save as aforesaid the Corporation shall not (except with the previous consent of the company under their common seal) purchase or acquire any lands or property of the company but the Corporation may acquire and the company shall grant accordingly a right (determinable nevertheless by the company or by the Corporation by twelve months' previous notice in writing under their common seal) of using so much of the lands of the company near their Southtown Station numbered 6a in the parish of Gorleston as may be necessary for the construction of Tramway No. 4 in such position as the principal engineer may determine and the Corporation shall pay to the company for such right such annual sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Arbitration Act 1889 for the purpose

of which Act this section shall be deemed to be a submission and in no case shall such right unless otherwise expressly agreed in writing by the company under their common seal extend to a greater area than is absolutely necessary for the proper construction of Tramway No. 4 in such position as aforesaid. Upon the determination of the right of the Corporation to use the said lands of the company the company shall be at liberty to remove the rails and materials of any tramways laid down by the Corporation on such lands and shall return the same to the Corporation who shall pay to the company all their costs charges and expenses of and incidental to such removal :

- (6) During the construction of the said tramways the Corporation shall bear and on demand pay to the company all expense of employment by them of a sufficient number of inspectors or watchmen to be appointed by the company for watching their said railways or tramways and lands with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger or accident which may arise from any of the operations or from the acts or defaults of the Corporation or their contractors or any person or persons in the employment of the Corporation or their contractors with reference thereto :
- (7) The Corporation shall at all times during the existence of the said tramways maintain such tramways where they respectively cross or run alongside or near the railways or tramways and lands of the company and also if required by the company so to do maintain the railways or tramways and other lands and works of the company where the same will be interfered with by the said tramways or any works of the Corporation in connexion therewith in substantial repair and good order to the reasonable satisfaction in all respects of the principal engineer and if and whenever the Corporation fail so to do or if the company by notice to the Corporation elect to do the work themselves the company may make and do in and upon as well the lands of the Corporation as their own lands all such works repairs and things as they may reasonably think requisite in that behalf and the reasonable amount of such expenditure shall be

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repaid to the company by the Corporation and in default may be recovered by them from the Corporation in any court of competent jurisdiction :

- (8) Notwithstanding anything in this Act contained the Corporation shall be responsible for and make good to the company all costs losses damages and expenses which may be occasioned to the company or to any of their railways tramways works or property or to the traffic thereon or otherwise by reason of the construction use or failure of the said tramways or any works in connexion therewith or by the acts or default of any of the persons in the employ of the Corporation or of their contractors or others and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such construction use failure act or default :
- (9) In the event of the company requiring at any time after the construction of Tramway No. 4 to extend their sidings or enlarge or rebuild their Southtown Station buildings they shall be at liberty to alter the position of Tramway No. 4 in such manner as they think fit but with due regard to the convenience of the public using the said Tramway No. 4 without being liable to pay any compensation to the Corporation in respect of obstruction to the traffic on the tramways of the Corporation or otherwise :
- (10) The working of the tramcars and other vehicles of the Corporation over the portions of Bridge Road Hall Quay and Southtown Road along or over which the said tramways will respectively be laid shall be subject in all respects to such reasonable regulations as the company may from time to time make with regard to the said tramways or to vehicular traffic on such tramways :

Provided that twenty-eight days before any such regulations shall come into operation the company shall send a copy thereof to the Corporation and if the Corporation shall before the expiration of such twenty-eight days give notice to the company objecting to the regulations or any of them they shall not come into operation until agreed or settled by arbitration as herein-after provided :

- (11) The driver or drivers of engines and carriages of the Corporation passing along the said tramways shall observe any regulations made by the company as aforesaid and if the said regulations require shall cause such engines to stop and remain stationary until the engines waggons trucks or other vehicles of the company shall have passed the intent and meaning of this provision being that the traffic of the company shall if the company so require at all times have precedence of any other traffic over Hall Quay Bridge Road and so much of the Southtown Road as lies within fifty yards of any tramways lands or premises of the company : A.D. 1904.
- (12) Notwithstanding the provisions of the section of this Act the marginal note whereof is "Temporary stoppage of streets" the Corporation shall not at any time do or permit to be done any act matter or thing which shall prevent or unreasonably hinder the free use by the company of their stations and premises or hinder or prevent the use of such stations and premises by other persons as before the passing of this Act :
- (13) Notwithstanding anything contained in this Act no posts standards brackets attachments conductors wires tubes mains plates boxes or apparatus shall without the consent in writing of the company be constructed over upon or be affixed to any house building or property belonging to or occupied by the company or to any bridge maintainable or repairable by them :
- (14) If any difference shall arise between the Corporation and the company as to the reasonableness of any plans sections or specifications herein-before provided for (except as to the position of Tramway No. 4 where the same will be laid on land of the company) or as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto such difference shall unless otherwise agreed between the company and the Corporation be determined by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the Board of Trade :
- (15) The Corporation and the company may agree to any variation or alteration of the works or matters in this section provided for or in the manner in which the same shall be executed or carried into effect.

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Corporation
not to inter-
fere with Gor-
leston tram-
ways until
acquired.

Period for
completion
of works.

Works to
form part of
tramway un-
dertaking of
Corporation.

Attachment
of brackets
&c. to
buildings.

8. Notwithstanding anything contained in this Act the Corporation shall not interfere with any of the tramways authorised by the Gorleston Tramway Orders without the consent of the tramway company until they shall have acquired such tramways.

9. Such of the tramways as are proposed to be constructed in streets to be widened or improved in pursuance of this Act shall be completed within two years after the widening or improvement of such streets respectively and the remainder of the tramways shall be completed within five years from the passing of this Act and on the expiration of those periods respectively the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

10.—(1) The tramways and works authorised by the foregoing provisions of this Act and the tramways and works authorised by the Gorleston Tramway Orders when acquired by the Corporation shall for all purposes form part of the tramway undertaking of the Corporation and the unrepealed provisions of the Act of 1899 and of the enactments incorporated therewith and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to all the said tramways and works as if they had formed part of the tramways and works authorised by the Act of 1899. Provided that nothing in this section contained shall prevent any rescission revocation amendment or variation of the said byelaws and regulations.

(2) Upon the acquisition by the Corporation of the tramways authorised by the Gorleston Tramway Orders the provisions of those Orders shall be by virtue of this Act repealed.

11. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of any of the tramways of the Corporation by mechanical power. Provided that—

(1) Where in the opinion of the Corporation any consent under this section is unreasonably withheld they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):

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(3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

12. Section 39 (For protection of Postmaster-General) of the Act of 1899 shall be amended as follows:—

Amendment
of provisions
for protec-
tion of Post-
master-
General.

(1) Subsection (3) (a) thereof shall be read as if the words within brackets “or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point” were omitted and such words shall be deemed to be omitted from the said subsection:

(2) The following provision shall have effect in addition to and shall be read with the provisions contained in the said section:—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of

A.D. 1904.

the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations.

Alteration of
tramways.

13.—(1) Notwithstanding anything contained in the Act of 1899 or in this Act the Corporation may—

- (a) Make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by the Acts relating to the tramways of the Corporation as they find necessary or convenient for the efficient working of those tramways for forming junctions with other tramways or light railways or for providing access to any warehouses carriage-houses or works of the Corporation ;
- (b) Lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of their tramways either when constructing the tramways or at any time thereafter and construct or take up and reconstruct any of their tramways in such position in the road in which it is authorised to be constructed as they may think fit.

(2) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

(3) Provided also that the powers of this section shall not be exercised by the Corporation with regard to so much of Tramways Nos. 7 and 9 authorised by the Act of 1899 as is shown on the

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signed plan referred to in section 15 (For protection of Great Eastern Railway Company) of that Act except with the consent of the Great Eastern Railway Company under their common seal. A.D. 1904.

(4) Section 24 (Additional crossings) and section 25 (Alteration of tramways) of the Act of 1899 are hereby repealed.

14. The Corporation may erect provide and fit up shelters or waiting-rooms for persons intending to use any of their tramways near to the routes of the tramways either upon land to be acquired for the purpose or (with the consent of the road authority) upon the highways. Waiting-rooms.

15. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any of the tramways of the Corporation anything which is calculated to obstruct or interfere with the working of such tramways or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any of the tramways of the Corporation shall be liable to a penalty not exceeding twenty pounds. Penalty for malicious damage.

16.—(1) The Corporation may provide maintain work and run omnibuses (whether moved by animal or by mechanical power)— Corporation may run omnibuses.

(a) Within the borough in connexion with the tramways of the Corporation when the running of carriages thereon is impracticable or pending the construction reconstruction alteration or repair thereof ; and

(b) Without the borough along the route of Tramway No. 3 authorised by this Act :

And the Corporation may demand take and recover tolls and fares for the use of such omnibuses.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may provide such plant appliances and conveniences as may be necessary or expedient for the establishment running and equipment of such omnibuses.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon any omnibus belonging to them Provided that any such byelaw shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

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(4) All expenses and receipts incurred in or arising from the exercise of the powers of this section shall be deemed to be part of the expenses and receipts of the tramway undertaking of the Corporation.

(5) Any omnibuses moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(6) Section 38 (Special provisions as to use of electrical power) of the Act of 1899 shall with the necessary modifications extend and apply to the use of electrical power as the motive power on such omnibuses.

Application
of Convey-
ance of Mails
Act 1893.

17. Notwithstanding any provision in any Act or Provisional Order relating to any of the existing tramways the Conveyance of Mails Act 1893 shall extend and apply to all the tramways of the Corporation as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three and to the Corporation as the body or person owning or working such tramways.

PART III.

STREET IMPROVEMENTS.

Power to
make street
improve-
ments.

18. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street improvements and other works herein-after mentioned with all proper approaches embankments retaining walls works and conveniences connected therewith or incident thereto.

The street improvements herein-before referred to and authorised by this Act will be situate in the borough and are—

- (1) A widening of Lowestoft Road from its junction with Feathers Plain to the south boundary of the gardens attached to the Tramway Hotel :
- (2) A widening of Baker Street from a point 3·50 chains from its western end to the junction of the said street with Pier Plain :
- (3) A widening of Mill Road from its junction with Bridge Road to a point 1·85 chains north of the same :
- (4) A widening of Ormond Road from a point 1 chain west of its eastern end to the junction of the said road with Northgate Street.

PART IV.
THE HAVEN.

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19. The Corporation may make and maintain in the lines and according to the levels shown upon the deposited plans and sections a widening and improvement of the Haven Bridge and the approach thereto commencing at a point 0·65 chain east of the easterly end of the bridge and terminating at a point in line with the west side of Mill Road together with all necessary or proper approaches footways traversing platforms piles abutments walls fences cables wires engines apparatus machinery appliances works and conveniences connected therewith or incidental thereto.

Power to
widen Haven
Bridge.

20. For the protection of the commissioners the following provisions shall except so far as may be otherwise agreed between the commissioners and the Corporation apply and have effect (that is to say):—

For protec-
tion of Great
Yarmouth
Port and
Haven Com-
missioners.

- (1) The Corporation shall when and so soon as the widening and improvement of the Haven Bridge authorised by this Act is completed forthwith remove all piles staging and other temporary works used in connexion with the construction of the said widening and improvement and shall make good the injury or damage (if any) that may have been caused by them to the navigation or to any property of the commissioners :
- (2) The Corporation shall not in the construction of the said widening and improvement obstruct impede or interfere with the free flow of the tidal or drainage waters through the River Yare to a greater extent than may be necessary :
- (3)—(a) Before the Corporation commence such widening and improvement or the laying or placing of tramways or electric cables or other works across on or over such bridge they shall submit detailed plans to the commissioners for their approval (which approval shall not be unreasonably withheld) showing the manner in which it is intended to widen and improve the said bridge and to place or lay tramways electric cables or other works thereon or thereover and on such approval being given all works in connexion with the said widening and improvement and the laying or placing of tramways electric cables or works shall be constructed and executed under the supervision (if the same be given)

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and to the reasonable satisfaction of the engineer to the commissioners ;

(b) But nothing in this Act shall relieve the Corporation from or impose upon the commissioners any liability or responsibility for or in connexion with the design or construction of such widening and improvement or for or in connexion with the plans for and the laying or placing of the said tramways or electric cables or other works across on or over the said bridge :

(4)---(a) The Corporation shall at all times maintain and repair all roadways over the bridge and also the approaches thereto Provided that so much of the costs and expenses of such maintenance and repair as would have been payable by the commissioners if this Act had not been passed shall be repaid by them to the Corporation ;

(b) The Corporation shall also maintain and repair all tramways and electric cables laid or placed by them across or over the said bridge and the new footways and footbridges and all works executed by them in connexion with the said widening and improvement :

(5) The engineer of the commissioners shall at all reasonable times have free access to the works authorised to be executed by the Corporation in connexion with the said widening and improvement of the said bridge and also to the works in connexion with the laying or placing of tramways and electric cables across on or over the said bridge :

(6) Nothing contained in this Act shall render the commissioners liable for the lighting of the footways and footbridges added to the bridge in pursuance of this Act :

(7) Section 59 (Opening Haven Bridge) and section 60 (Light to be provided on Haven Bridge) of the Great Yarmouth Port and Haven Act 1866 shall extend and apply to the footbridges and works executed by the Corporation in connexion with the said widening and improvement of the said bridge :

(8)---(a) During the construction of the works by this Act authorised the Corporation shall as far as possible keep the navigation of the river at and about the bridge free and clear so that vessels navigating in and

upon the river may have sufficient and convenient room to navigate and pass thereon and shall also provide and maintain such temporary piling and fendering as shall be reasonably required and approved by the engineer of the commissioners for the safety or convenience of the navigation ;

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- (b) Such temporary piling and fendering shall be removed by and at the expense of the Corporation so soon as the works in connexion with the widening and improvement of the bridge are completed :
- (9) The Corporation shall be responsible for all or any damage to the channel and foreshores of the said river within one hundred yards above and below the works authorised by this Act or to any vessel boat or barge navigating the said river within those limits during the execution of any works of the Corporation affecting the said river which may be caused thereby or result therefrom :
- (10) The bridge as widened and improved under the powers of this Act shall be controlled and worked by the commissioners under and subject to the provisions relating to the working and controlling of the existing bridge and those provisions shall extend and apply to the widened and improved bridge accordingly but any additional expense incurred by the commissioners in working the bridge caused by the widening and improvement thereof in pursuance of this Act shall be repaid to them by the Corporation :
- (11) In the event of the Corporation discontinuing the use of the tramways across the said bridge they shall within twelve months after such discontinuance remove such tramways and all electric cables and other works used in connexion therewith and shall relay the road and the approaches thereto and place the same in good condition to the reasonable satisfaction of the engineer to the commissioners :
- (12) If at any time it shall be necessary for the purposes of the Corporation in respect of tramway traffic to execute any works for the strengthening or repairing of the bridge or the machinery thereof for insuring the safety and proper working of such traffic the expense of any such works shall be borne and paid by the Corporation :

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(13) If any injury or damage shall be caused to the bridge or its machinery by the construction or working of the tramways or by any works of the Corporation in connexion with such bridge the Corporation shall at their own expense forthwith make good such injury or damage to the reasonable satisfaction of the engineer to the commissioners :

(14) Any difference between the commissioners and the Corporation under this section or under the section of this Act whereof the marginal note is "Purchase and establishment of ferries" shall be determined by an arbitrator to be agreed upon between the parties or in default of agreement by an arbitrator to be appointed by the Board of Trade on the application of either party.

Power to
dredge &c.

21. Subject to the provisions of this Act for the purposes of the works authorised by this part of this Act the Corporation with the consent of the commissioners may within the limits of deviation defined on the deposited plans dredge and deepen the bed of the River Yare and alter and interfere with the banks bed soil and foreshore of the said river and may drive such piles and erect such temporary staging and other temporary works and conveniences in upon or over the banks bed and foreshore of the said river as may be necessary or convenient and all such works shall be carried out under the superintendence (if the same be given) and to the satisfaction of the engineer to the commissioners :

Provided that nothing contained in this section shall be deemed to authorise the Corporation to interfere with or in any manner affect any lands works or property of the Great Eastern Railway Company.

Works below
high water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

22. The Corporation shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve such approval being signified as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like

consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

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23. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Corporation on in over through or across tidal lands or tidal waters or of the intended site of any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

24. If a work constructed by the Corporation under the powers of this Act on in over through or across tidal lands or tidal waters be abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of work
abandoned or
decayed.

25. The Corporation shall at or near the works below high water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Corporation fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Lights on
works during
construction.

26. The Corporation shall at the outer extremity of their works below high water exhibit and keeping burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct. If the Corporation fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Corporation
to exhibit
lights after
completion
of works.

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Purchase
and estab-
lishment of
ferries.

27. The Corporation may—

- (1) Purchase take and use the ferries over the Haven called respectively “the North Ferry” and “the South Ferry” together with the property (real and personal) rights powers and privileges held or enjoyed by the owners of those ferries respectively for the purposes thereof and the provisions of the Lands Clauses Acts incorporated with this Act shall so far as applicable extend and apply to the purchase and taking of such ferries property rights powers and privileges as if the same were lands within the meaning of those Acts Provided that the Corporation shall not purchase take or use one of such ferries unless they purchase both of such ferries :
- (2) Establish a new ferry or new ferries across the Haven at such point or points as they may deem expedient and as the commissioners may approve (which approval shall not be unreasonably withheld) Provided that the Corporation shall not establish any new ferry across the Haven unless and until they shall have purchased the North Ferry and the South Ferry under the foregoing provisions of this section :
- (3) Purchase hire provide maintain use and work steam and other boats and construct and maintain landing stages piers and other works and conveniences for the purposes of their ferries.

Incorporation of section 28 of Harbours Docks and Piers Clauses Act 1847.

28. The provisions of section 28 (Exemption of vessels in Her Majesty's service &c. from rates) of the Harbours Docks and Piers Clauses Act 1847 shall without prejudice to any existing right of His Majesty be incorporated with this Act and shall so far as applicable apply to any landing stages piers and other works provided constructed or maintained under the provisions or for the purposes of this Act and shall be read and have effect as if the expression “harbour dock or pier” where used in the said section included such landing stages piers and other works.

Power to take tolls for ferries.

29. The Corporation may demand and receive for the use of any ferry purchased or established by the Corporation under this Act any tolls not exceeding the sums mentioned in the First Schedule to this Act.

Lists of tolls to be exhibited.

30. Lists of the tolls from time to time appointed by the Corporation to be taken under this part of this Act shall be exhibited in conspicuous places where such tolls shall respectively be payable.

31. The tolls shall be paid to such persons and at such places upon or near the ferry and in such manner and under such regulations as the Corporation shall by notice annexed to the lists of tolls appoint and the Corporation may recover such tolls in a summary manner as a civil debt or by action in any court of competent jurisdiction.

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Taking and recovery of tolls.

32. If any dispute arise concerning the amount of the tolls due to the Corporation by virtue of this part of this Act the same shall be ascertained by a court of summary jurisdiction.

Disputes as to tolls.

33. If any person shall knowingly and wilfully and with intent to defraud refuse or neglect to pay his toll when the same shall be payable by virtue of this part of this Act he shall for every such offence be liable to a penalty not exceeding forty shillings.

Penalties on persons practising frauds.

34. Every toll collector who shall commit any of the following offences shall forfeit a sum not exceeding ten pounds for each such offence (that is to say) :—

Penalties on toll collectors.

If he refuse to tell his Christian name and surname to any person demanding the same who shall have paid or tendered the tolls demanded of him or if he give a false name to any such person :

If he wilfully and with intent to defraud demand or take a greater or less toll from any person than he shall be authorised to do by virtue of this Act and of the orders of the Corporation made in pursuance thereof.

35. The Corporation may make byelaws for all or any of the purposes following (that is to say) :—

Power to make bye-laws as to ferries.

(1) For regulating controlling limiting and prescribing the times for the use of any ferry acquired or established by the Corporation :

(2) For preventing the commission of any nuisances in or upon any vessels works or premises of the Corporation used for any of the purposes of this part of this Act :

(3) For preventing injuries or damages to any works or property of the Corporation so used :

(4) For regulating the conveyance of passengers passengers' luggage goods and vehicles in or upon any such vessels as aforesaid and the embarkation and disembarkation of the same respectively and for prohibiting the embarkation of any goods or vehicles in any such vessel which may in the opinion of the Corporation be injurious to or prejudicially affect the use of the same or the traffic to be carried therein.

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Appoint-
ment of
officers &c.

Saving
rights of
Crown.

36. The Corporation may appoint employ remunerate and dismiss such officers servants toll collectors and other persons as in their opinion may be required for any of the purposes of this part of this Act.

37. Nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

PART V.

LANDS AND FURTHER PROVISIONS AS TO WORKS.

Power to
take lands.

38. Subject to the provisions of this Act the Corporation may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of the works authorised by or for other the purposes of this Act including the provision of space for the erection of buildings adjoining or near to any street widened or improved in pursuance of the powers of this Act.

Period for
compulsory
purchase of
lands.

39. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Provisions as
to compensa-
tion.

40. For the purpose of determining any question of disputed compensation payable in respect of lands taken in pursuance of this Act the following provisions shall apply and for the purposes of this section the expression "owner" shall mean the owner of and persons interested in the lands required by the Corporation :—

- (1) The tribunal shall take into account any permanent increase in value of any lands retained by or belonging to the owner which in the opinion of the tribunal will result from or be caused by the construction of the works for or in connexion with which the lands are required and generally all the other circumstances of the case which it is equitable to consider :

(2) The tribunal shall not award any sum of money for or A.D. 1904
in respect of any improvement alteration or building
made or for or in respect of any interest in the land
created after the first day of January one thousand
nine hundred and four if in the opinion of the tribunal
the improvement alteration or building or the creation
of the interest in respect of which the claim is made
was not reasonably necessary and was made or created
with a view to obtaining or increasing compensation
under this Act.

41.—(1) The tribunal shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered one half of the costs of the proceedings before the tribunal shall be defrayed by such claimant and the remaining half shall be defrayed by the Corporation anything in the Lands Clauses Consolidation Act 1845 to the contrary notwithstanding. Costs of arbitration &c. in certain cases.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contains or is endorsed with a notice of the effect of this section.

42. The following sections of the Act of 1899 shall extend and apply to the exercise of the powers of this Act as if those sections were with any necessary modifications re-enacted in this Act namely :— Application of provisions as to lands of Act of 1899.

Section 6 (Correction of errors &c. in deposited plans and book of reference) ;

A.D. 1904. Section 8 (Owners may be required to sell parts only of certain lands and buildings) ;

Section 9 (Persons under disability may grant easements &c.) ;

Section 10 (Power to purchase additional lands by agreement) ;

Section 12 (Power to retain sell &c. lands) ;

Section 13 (Proceeds of sale of surplus lands) :

Provided that in the application of section 8 of the Act of 1899 that section shall be read and have effect as if the Second Schedule to this Act were therein referred to instead of the First Schedule to the Act of 1899.

Limits of deviation.

43. In the construction of the works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding in the case of the street works two feet either upwards or downwards and in the case of the other works authorised by this Act not exceeding five feet either upwards or downwards. Provided that no deviation either lateral or vertical below high water mark shall be made without the consent in writing of the Board of Trade and of the commissioners.

Subsidiary works.

44. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connexion with the works authorised by this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section :

Provided that the Corporation shall not alter divert or interfere with any pipe tube wire or apparatus laid down for telegraphic or other purposes and belonging to or used by the Postmaster-General

[4 EDW. 7.] *Great Yarmouth Corporation Act, 1904.* [Ch. ccviii.]

except in accordance with and subject to the provisions of the Telegraph Act 1878. A.D. 1904.

45. The Corporation may during the execution and for the purposes of any work authorised by this Act from time to time stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Corporation. Temporary stoppage of streets.

PART VI.

STREETS AND BUILDINGS.

46.—(1) The Corporation may (if in the circumstances of the case they think it expedient so to do) make it a condition of approving the plans of any new street that such street shall be so laid out and formed that the same shall not terminate with a dead end or cul-de-sac and in any such case the street shall not be laid out and formed except in accordance with such condition unless the person laying out such street can show that it is impossible for him to comply therewith. Prevention of formation of culs de-sacs.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

47. The Corporation may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending. Corporation may declare where streets begin and end.

48. Every continuation of an existing street shall for the purposes of the Public Health Acts the Act of 1897 and this Act and of any byelaws made thereunder respectively and for the time being in force within the borough be deemed to be a new street. Continuation of existing streets to be deemed new streets.

49.—(1) In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Corporation may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute such repairs within a reasonable time to be specified in such notice. Urgent repairs to private streets.

(2) If within the time specified in such notice the repairs are not executed the Corporation may execute the same and may

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Power to
alter names
of streets.

50.—(1) The Corporation may with the consent of two thirds in number and value of the ratepayers in any street alter the name of such street or any part of such street.

(2) The Corporation may cause the name of any street or of any part of a street to be painted or otherwise marked on a conspicuous part of any building or other erection.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such name shall be liable to a penalty not exceeding forty shillings.

Crossings for
horses cattle
or vehicles
over foot-
ways.

51.—(1) Every person desirous of forming a communication for horses cattle or vehicles across any kerbed or paved footway so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Corporation and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footway and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of the necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise.

(2) Any person who drives or permits or causes to be driven any horse cattle or vehicle across any footway unless and until such communication as aforesaid has been so made or on or along any part of such footway other than the part over which such communication has been made shall for every such offence be liable to a penalty not exceeding forty shillings and in addition shall make good to the Corporation the amount of damage (if any) thereby caused to such footway.

(3) Provided that nothing in this section shall be deemed to apply to the temporary crossing of footways during building operations if means satisfactory to the Corporation be taken to protect such footways from injury and to provide for the convenience of foot passengers.

Restriction
on deposit of
building ma-
terials and
excavations.

52.—(1) A person shall not without the consent in writing of the Corporation first obtained lay any building materials rubbish or other thing or make any excavation on or in any street open for traffic and when with such consent any person lays any building

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materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near to the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation.

(2) If any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender.

53.—(1) From and after the passing of this Act—

What to be deemed new buildings.

(a) The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;

(b) The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the borough into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

(c) The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;

(d) The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only ; and

(e) The roofing or covering over of any open space between walls or buildings ;

shall for all the purposes of any Act for the time being in force within the borough and of the Public Health Acts and of any byelaws made thereunder respectively be deemed to be the erection of a new building.

(2) Section 79 (What to be deemed new buildings) of the Act of 1897 is hereby repealed.

54.—(1) The Corporation may by order prohibit the construction of any cellar or ground floor in any dwelling-house or

Power to prohibit cellars &c.

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where liable
to floods.

other building in which it shall be proposed to place the floor of such cellar or ground floor at a lower level than eight feet above Ordnance datum.

(2) Any person who shall act in contravention of any order made in pursuance of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Elevation of
buildings
erected on
front land to
be subject to
approval of
Corporation.

55.—(1) All buildings or parts of buildings which may hereafter be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Corporation becomes land abutting upon a street and all buildings or parts of buildings which may hereafter be erected abutting upon the Marine Parade shall be erected according to such elevation as the Corporation approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street or which has a frontage to the Marine Parade makes any door or entrance opening upon or communicating with the street or erects any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan and elevation approved by the Corporation and in case the Corporation for the space of one month after any plan or drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof.

(2) The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence in pursuance of any requirement made by the Corporation upon approving any plan or drawing under this section.

(3) Any person who shall contravene the provisions of subsection (1) of this section shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Temporary
and movable
buildings.

56.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission to do so and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a plan drawn to a convenient scale showing the intended situation and surroundings of the proposed

building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Corporation shall within one month after the delivery of the plan section and specification signify in writing their approval or disapproval of the proposed building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such proposed building is commenced erected or set up without such application accompanied by such plan section and specification or after the disapproval of the Corporation or before the expiration of the one month without such approval or is in any respect not in conformity with the approved plan section and specification and with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof allowed by them the owner of such building shall for every such offence be liable to a penalty not exceeding forty shillings and to a daily penalty of the like amount and the Corporation may cause such building to be taken down or removed and any expense incurred by them in or about the taking down or removal of the building may be recovered from the owner thereof or from the person commencing erecting or setting up the same at the discretion of the Corporation.

(5) The following buildings and works shall be exempt from the operation of this section :—

(a) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough with respect to new buildings ;

(b) Any tent not remaining for more than seven days ;

(c) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be taken down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same

A.D. 1904.

to be taken down or removed and any expense incurred by them in or about the taking down or removal of the structure or erection may be recovered from the owner thereof or from the person erecting or setting up the same at the discretion of the Corporation ;

(d) Any wooden or other structure or erection erected or set up for the purpose of protecting or preventing the acquisition of any right of light ; and

(e) Buildings (other than a dwelling-house) erected or set up on the premises of any railway company and used for the purposes of their railway.

(6) When a temporary or other building referred to in this section is taken down or removed by the Corporation under the powers of this section the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale in and towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance (if any) to the owner of such building.

Corporation may require removal or alteration of urinals.

57.—(1) If any urinal or other sanitary convenience now or hereafter opening on any street shall in the opinion of the Corporation be so placed or constructed as to be a nuisance or offensive to public decency the Corporation by notice in writing may require the owner to remove such urinal or convenience.

(2) Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Saving for railway companies.

58. Nothing in this part of this Act or in any byelaw made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway under any Act of Parliament.

PART VII.

SKY SIGNS.

Sky signs.

59.—(1) (a) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of

[4 EDW. 7.] *Great Yarmouth Corporation Act, 1904.* [Ch. ccviii.]

this Act and under and subject to such terms and conditions as shall be therein prescribed : A.D. 1904.

(b) Provided that in any of the following cases a licence of the Corporation under this subsection shall become void namely :—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor ;
- (ii) If any change be made in the sky sign or any part thereof ;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ; or
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

(c) Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section—

“Sky sign” means—

Any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any

A.D. 1904.

street or public way and includes all and every part of any such post pole standard framework or other support ;

The expression " sky sign " shall also include—

Any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way ;

But shall not include—

(a) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement ;

(b) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;

(c) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place.

PART VIII.

POLICE.

Extended
definition of
public place
and street for
certain pur-
poses.

60.—(1) (a) Any place of public resort or recreation belonging to or under the control of the Corporation ; and

(b) Any unfenced ground adjoining or abutting upon any street ;

shall for the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be an open and public place and shall be deemed to be a street for the purposes of section 29 of the Town Police

[4 EDW. 7.] *Great Yarmouth Corporation Act, 1904.* [Ch. ccviii.]

Clauses Act 1847 and also for the purposes of so much of section 28 A.D. 1904.
of that Act as relates to the following offences:—

Every person who suffers to be at large any unmuzzled ferocious dog or sets on or urges any dog or other animal to attack worry or put in fear any person or animal ;

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle ;

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution ;

Every person who wilfully and indecently exposes his person ;

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language ;

Every person who wantonly discharges any firearms or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework ;

Every person who throws or lays any dirt litter or ashes or night-soil or any carrion fish offal or rubbish on any street.

(2) Any field or ground adjoining or abutting upon any street not being part of the curtilage of a house and not being separated from the street by a close fence not less than six feet in height shall be deemed to be an open and public place for the purposes of section 3 of the Vagrant Act Amendment Act 1873.

61.—(1) The power to make byelaws conferred upon the Corporation by section 23 of the Municipal Corporations Act 1882 shall enable the Corporation to make byelaws for prohibiting any person or persons during Sundays in any street within the borough from crying or calling out for sale any newspaper journal or serial or from advertising by any cry or calling out any newspaper journal or serial or from ringing any bell or using any horn whistle or noisy instrument or creating any noise whatsoever for the purpose of selling any newspaper journal or serial or attracting or attempting to attract the attention of any person or persons by means of any noise whatsoever whether vocal or otherwise for the purposes aforesaid or any of them.

Byelaws as
to crying
newspapers.

(2) The provisions of the Municipal Corporations Act 1882 with respect to byelaws made under section 23 of that Act shall extend and apply to byelaws made under this section.

A.D. 1904.

Regulations
as to street
traffic.

62.—(1) The Corporation may make regulations with respect to those streets in the borough to be specified in the regulations in which any of their tramways are constructed or which are specially liable to be obstructed by reason of the amount or nature of the traffic requiring the drivers of slow moving vehicles to keep their vehicles to a particular portion of the street.

(2) All regulations under this section shall be subject to the approval of the Secretary of State.

(3) Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings.

(4) Nothing in this section contained shall apply to any railway trucks or carriages belonging to and used by the Great Eastern Railway Company on any of their railways or tramways.

PART IX.

FINANCE.

Power to
borrow.

63.—(1) The Corporation may independently of any other borrowing power borrow at interest money for the following purposes (that is to say) :—

(a) For the construction of the tramways authorised by this Act and for the provision and erection of posts standards brackets conductors and other apparatus works and conveniences for the purposes of the said tramways the sum of sixty-five thousand pounds ;

(b) For the provision of rolling stock the sum of twelve thousand pounds ;

(c) For the reconstruction of the tramways authorised by the Gorleston Tramway Orders when acquired by the Corporation (other than the tramways which will be superseded by the tramways authorised by this Act) and for the provision and erection of posts standards brackets conductors and other apparatus for the purposes of those tramways the sum of eight thousand pounds ;

(a) For the purchase of lands for the street improvements authorised by this Act and for the execution of such street improvements the sum of twelve thousand pounds ;

(e) For the widening and improvement of the Haven Bridge and of the approach thereto authorised by this Act the sum of ten thousand pounds ; A.D. 1904.

(f) For the purchase of the ferries which the Corporation are by this Act authorised to purchase the sum requisite for that purpose ;

(g) For paying the costs charges and expenses of this Act as herein-after provided the sum requisite for that purpose ;

and with the consent of the Board of Trade such further money as may be necessary for any of the purposes of the tramway undertaking of the Corporation and with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act other than purposes of that undertaking.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

As regards money borrowed for the purposes (a) (b) (c) and (g) and any money borrowed for the purposes of the tramway undertaking of the Corporation the revenue of that undertaking and the borough fund and borough rate or either of those securities ;

As regards money borrowed for the purpose (f) and any money borrowed for the purposes of the ferries undertaking of the Corporation the revenue of that undertaking and the district fund and general district rate or either of those securities ;

As regards money borrowed for any other purposes the district fund and general district rate.

(3) The Corporation shall pay off all money borrowed by them under this section within the respective periods (in this Act referred to as “the prescribed periods”) following (that is to say) :—

As to money borrowed for the purposes (a) (c) (e) and (f) within thirty years from the date or dates of borrowing the same ;

As to money borrowed for the purposes (b) within fifteen years from the date or dates of borrowing the same ;

As to money borrowed for the purposes (d) within sixty years from the date or dates of borrowing the same ;

A.D. 1904.

As to money borrowed for the purpose (g) within five years from the passing of this Act ;

As to money borrowed with the consent of the Board of Trade or of the Local Government Board within such periods as the respective Boards may sanction.

Application
of financial
provisions of
Act of 1897.

64. The following sections of the Act of 1897 shall extend and apply to the exercise of the powers of this Act as if those sections were with any necessary modifications re-enacted in this Act namely :—

Section 101 (Mode of raising money) ;

Section 102 (Certain regulations of Public Health Act as to borrowing not to apply) ;

Section 103 (Provisions of Public Health Act as to mortgages to apply) ;

Section 105 (Mode of payment off of money borrowed) ;

Section 106 (Sinking fund) ;

Section 107 (Protection of lender from inquiry) ;

Section 108 (Corporation not to regard trusts) ;

Section 109 (Appointment of receiver) ;

Section 110 (Power to re-borrow) ;

Section 111 (Annual return to Local Government Board) ;

Section 112 (Application of money borrowed) ;

Section 120 (Audit of accounts) ;

Section 129 (Inquiries by Local Government Board) :

Provided that the provisions contained in section 106 of the Act of 1897 shall apply to the formation of sinking funds for the repayment of money borrowed under the Local Loans Act 1875 instead of section 15 of the last-mentioned Act.

Application
of revenue
from ferry
undertaking
and defi-
ciency of
receipts.

65.—(1) The Corporation shall keep separate accounts in regard to their ferry undertaking and shall apply all money received by them on account of revenue in respect of that undertaking in manner and in the order following (that is to say) :—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking ;

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking ;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Corporation for the purposes of the undertaking ;

Fourthly In extending and improving the undertaking (if the Corporation think fit) ; A.D. 1904.

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the undertaking or for extending and improving any works for the purposes of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Corporation shall carry to the district fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the said undertaking shall be made good out of the district fund and the general district rate made next after the deficiency is ascertained shall be increased to recoup to the district fund the amount paid thereout.

66. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the borough fund and borough rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure deem just. Expenses of execution of Act.

A.D. 1904.

PART X.

MISCELLANEOUS.

Sale to Corporation of site of small-pox hospital.

67. Notwithstanding anything contained in the Act 49 Geo. III. c. lxiii. entitled "An Act for enclosing lands in the parishes of Corton Hopton and Gorleston in the county of Suffolk" or in any other Act the owners of the lands which have been leased to the Corporation and upon part of which their smallpox hospital has been erected may with the sanction of the Charity Commissioners for England and Wales grant and convey those lands to the Corporation for such price and upon and subject to such terms and conditions as may be agreed between the said owners and the Corporation.

Application of purchase money for land sold under Midland Railway Act 1900.

68.—(1) The Corporation shall apply the money received by them for the sale to the Midland and Great Northern Railway Joint Committee (in this section called "the committee") of part of the lands referred to in subsection (1) of section 29 (For the protection of the Corporation of Great Yarmouth) of the Midland Railway Act 1900 in the following manner namely :—

- (a) As to a sum not exceeding four thousand pounds to be paid by the committee upon the completion of the agreement for the said purchase towards the repayment of the sum borrowed by the Corporation in pursuance of subsection (8) of the said section :
- (b) As to a sum not exceeding one thousand pounds to be paid by the committee upon the completion of the said agreement and a further sum of not exceeding five hundred pounds to be paid by the committee upon a date subsequent to such completion towards the laying out and improvement of any recreation ground of the Corporation and in the erection of a grand stand in the recreation ground from which the said lands are severed :
- (c) As to a sum not exceeding one thousand pounds to be paid by the committee upon a date subsequent to the completion of the said agreement towards the repayment of the balance then outstanding of the sum borrowed by the Corporation under subsection (8) of the said section :
- (d) The balance of such purchase money shall be invested by the Corporation in statutory securities the Corporation being at liberty to vary and transpose such investments

or such balance or the proceeds of the sale of any such investments may be applied to such purposes to which capital is properly applicable as the Corporation may at any time with the consent of the Local Government Board determine. A.D. 1904.

(2) Subsection (5) of the said section 29 is hereby repealed.

(3) The Corporation may complete the sale of the said lands although the period limited by the Midland Railway Act 1900 for compulsory purchase of lands has expired.

69.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who within the borough—

For regu-
lating manu-
facture and
sale of ice
cream &c.

(a) Causes or permits ice cream or any similar commodity or any materials to be used in the manufacture thereof to be manufactured sold or stored in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or any similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation may compensate the owners of the ice cream or similar commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow or stand and any person who shall fail to comply

A.D. 1904. — with this enactment shall be liable to a penalty not exceeding forty shillings.

As to breach of conditions of consent of Corporation.

70. Where the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Apportionment of expenses in case of joint owners.

71. Where under the provisions of this Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

In executing works instead of owner Corporation only liable for negligence.

72. Whenever the Corporation or the surveyor under this or any other Act or any byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

General provisions as to byelaws.

73. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act except byelaws to which the provisions of the Tramways Act 1870 or of section 23 of the Municipal Corporations Act 1882 are applied by this Act. Provided that as respects byelaws made under the section of this Act whereof the marginal note is "Power to make

byelaws as to ferries" the Board of Trade shall be substituted for the Local Government Board. A.D. 1904.

74. Section 265 (Protection of local authority and their officers from personal liability) and section 306 (Penalty on obstructing execution of Act) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein. Application of sections 265 and 306 of Public Health Act 1875.

75.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Authentication and service of notices.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

76. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of this Act or by any conviction or order made by a court of summary jurisdiction or a petty sessional court under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction or a petty sessional court the Corporation may in like manner appeal. As to appeal.

77. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensation how to be determined.

78. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw Recovery of penalties.

A.D. 1904. — made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Informations
&c. by whom
to be laid.

79. Save as herein expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Corporation authorised in that behalf or by the town clerk.

Penalties to
be paid over
to treasurer.

80. All penalties recovered on the prosecution of the Corporation under this Act or under any byelaw thereunder shall be paid to the treasurer of the borough and be by him carried to the credit of the borough fund.

Judges not
disqualified.

81. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Crown
rights.

82. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act.

83. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the revenue of their tramway undertaking or out of the borough fund or out of moneys borrowed under the provisions of this Act.

SCHEDULES referred to in the foregoing Act.

A.D. 1904.
—

THE FIRST SCHEDULE.

FERRY TOLLS.

Toll which may be demanded and taken by the Corporation for passengers crossing the Haven by means of a ferry of the Corporation for each crossing either way:—

	s.	d.
For every person - - - - -	0	0½

Provided that between the hours of half-past eight in the evening and half-past five in the morning the toll which may be demanded and taken as aforesaid shall be double the amount herein-before mentioned.

THE SECOND SCHEDULE.

PREMISES OF WHICH PARTS ONLY MAY BE TAKEN.

Borough.	Numbers on deposited Plans.
Borough of Great Yarmouth	1 3 6A 7 10 11 12 13 18 19 20 21 22 49 50 59 60 61.

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